IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-IV

CP. (CAA)-57/ND/2022

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

OF

SPAN FASHIONS LIMITED

... (TRANSFEROR COMPANY / PETITIONER COMPANY No.1)

AND

PRIMA ASSOCIATES PRIVATE LIMITED

... (TRANSFEREE COMPANY / PETITIONER COMPANY No.2)

Order delivered on: 19.05.2022

CORAM:

MR. DHARMINDER SINGH, HON'BLE MEMBER (J)

MS. SUMITA PURKAYASTHA, HON'BLE MEMBER (T)

ORDER

PER: SHRI DHARMINDER SINGH, MEMBER- JUDICIAL

This Company Petition filed jointly by the Petitioner Companies is coming before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to

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as "SCHEME") as contemplated between the Petitioner Companies and their respective shareholders and creditors.

From the records, it is seen that the First Motion seeking direction for dispensation / convening the meeting of Shareholders, Secured Creditors and Unsecured Creditors was filed before this Bench vide CA (CAA) No.34/(ND)/2022 and based on such joint application moved under Sections 230-232 of the Companies Act, 2013 where in the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of all the Petitioner Companies were dispensed with vide order dated 04.05.2022 passed by this Bench.

Thereafter this petition on second motion is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 and it is now hereby ordered as follows: -

(i) Notice of the hearing of the main Company Petition shall be advertised in the newspapers namely, "The Business Standard" (English and Hindi Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(ii) In addition to the above public notice, each of the Petitioner Companies shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of

Corporate Affairs; (c) the concerned Income Tax Department; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme at least clear 30 days before the date fixed for hearing of the above Petition.

(iii) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(iv) All the Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator as well as to Objectors, if any.

(v) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

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(vi) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's statutory auditor.

(vii) The next date of hearing of the Petition shall be on 11.07.2022 for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.

Copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)